KOR STRUCTURAL · CONTRACT REVIEW · COMPANION TO THE 24 AUGUST REVIEW

Matthews West — Insurance check and next steps

The certificate meets both limits. It does not meet clause 10.3 as drafted, which makes 10.3 the clause to mark up, not the certificate to change. The markup belongs with the firm's counsel and broker, who did exactly this for Starlight; the signature stays with Rory.

Limits — met | Subrogation — not met | Entity name — fix | Renewal — 21 Nov

CERTIFICATE 2025-00142 (BFL CANADA, 8 OCTOBER 2026) AGAINST SECTION 10 OF THE AGREEMENT

10.1.1 **General liability $5M each occurrence and aggregate, with cross liability**	$5,000,000 per occurrence and $5,000,000 products and completed operations aggregate; cross liability, severability and blanket contractual liability included	Met
10.1.1 **Owner and its officers, directors, employees and agents as additional named insureds**	Oceanfront Squamish Developments LP, by its GP MSSH Oceanfront GP Inc., added to the general liability policy only, for KOR's operations only. No individuals named	Partly
10.1.1 **Policy primary and without right of contribution**	Not stated on the certificate	Not shown
10.1.2 **Automobile liability $2,000,000, each vehicle used, "if any"**	Non-owned automobile $5,000,000 under the general liability policy; no separate automobile policy is listed. Starlight deleted this clause outright.	Not shown
10.1.3 **Professional liability $2M each occurrence and aggregate**	$2,000,000 each claim and $2,000,000 aggregate, claims made	Met
10.1 **Claims-made cover kept three years after completion**	Both policies run 21 Nov 2025 to 21 Nov 2026. An obligation to keep renewing, not something a certificate can show.	Not shown
10.1.4 **Workers' Compensation per Applicable Laws**	Not on a certificate of insurance; a WorkSafeBC clearance letter is the usual evidence	Not shown
10.3 **Waiver of subrogation and Owner as additional insured on all policies**	No waiver of subrogation anywhere on the certificate; additional insured on the general liability policy only. E&O carriers typically will not add additional insureds. Starlight's executed wording limits both to the general liability policy.	Not met

TWO FACTS THE CERTIFICATE ADDS

- **The counterparty's legal name is now on paper.** The certificate names **Oceanfront Squamish Developments Limited Partnership, by its general partner MSSH Oceanfront GP Inc.** The agreement's preamble still reads "[Oceanfront Squamish ("Owner")", a stray bracket and no legal entity. That line should carry the name the certificate carries.
- **Both policies expire 21 November 2026**, about five weeks out. A renewal certificate will be needed within weeks of signing.

WHO DOES WHAT NEXT

THE BROKER · CLAUSE 10

BFL Canada — Steve Potter

He reviewed Starlight's insurance clauses for KOR in May 2025 (subrogation waiver: CGL only; auto: only if company vehicles are used). Ask him in writing which of 10.1.1 to 10.3 BFL can certify, whether E&O will carry either, and that the Lloyd's placements pass 10.3's licensed-in-Canada test.

COUNSEL · THE MARKUP

TSH — Cassandra Paterson

Twining Short & Haakonson marked up Starlight for KOR (file 52171, May 2025): uninsured claims capped at the lesser of two times the Price and $500,000, insured claims at policy limits (8.4); IP reserved with a project licence; indemnity carved out for the Owner's or other consultants' errors; subrogation on CGL only. Send the Matthews PSA to TSH for the same. Jim DesRoches signed as Principal.

RORY · THE SIGNATURE

Three decisions, then reply

Authorise TSH and BFL to review the PSA, as was done for Starlight; the entity name in the preamble; and the reply date to Matthews. No marked-up agreement has been produced yet. The 24 August review is the position to mark up from.

Prepared 14 October 2026 for Rory Beirne and Daler Singh · Sources: COI 2025-00142 (BFL, 8 Oct 2026); PSA as of 22 July 2026, s.10; KOR review 24 Aug 2026; Starlight file 31180-01, Proposals & Contracts.